

# CONTRACT REVIEW CHECKLIST

ILLUSTRATIVE / SELF-CREATED SAMPLE  
Contract Review | Commercial Contracts | Legal Operations | Risk Management

## 1. DOCUMENT & TRANSACTION DETAILS

| Particular     | Details                                                          |
|----------------|------------------------------------------------------------------|
| Contract Type  | Master Services Agreement                                        |
| Parties        | Aurora Tech Solutions Pvt. Ltd. & Nexora Cloud Systems Pvt. Ltd. |
| Business Owner | Technology / Procurement Team                                    |
| Legal Reviewer | Legal & Compliance                                               |
| Contract Value | ₹24,00,000 per annum                                             |
| Effective Date | 1 October 2026                                                   |
| Initial Term   | 12 Months                                                        |
| Renewal        | Mutual written agreement                                         |
| Review Status  | Under Legal Review                                               |
| Version        | Draft v1.0                                                       |
| Review Date    | 24 September 2026                                                |

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## 2. PARTY & CORPORATE INFORMATION

### A. Identity Verification

- ☐ Correct legal name of each party verified
- ☐ Corporate structure / entity type verified
- ☐ Registered office address verified
- ☐ CIN / registration details verified, where applicable
- ☐ GST / tax identification details verified, where relevant
- ☐ Authorised signatory identified
- ☐ Signatory has appropriate authority
- ☐ Notice addresses and official email addresses verified

### Key Review Question

Are we contracting with the correct legal entity, and does the person signing have authority to bind that entity?

Finding / Comments:

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## 3. COMMERCIAL TERMS

- ☐ Scope of services clearly defined
- ☐ Deliverables identified
- ☐ Pricing / fees clearly stated
- ☐ Currency specified
- ☐ Payment milestones identified
- ☐ Payment due dates specified
- ☐ Taxes / GST treatment addressed
- ☐ Invoicing requirements defined
- ☐ Reimbursement / expenses addressed
- ☐ Price escalation mechanism reviewed
- ☐ Purchase Order requirements identified
- ☐ Minimum commitment, if any, identified

### Commercial Risk

Issue: \_\_\_\_\_

Risk Level: ☐ Low ☐ Medium ☐ High

Recommended Action:

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## 4. SCOPE OF SERVICES

- ☐ Services are sufficiently specific
- ☐ Deliverables are objectively identifiable
- ☐ Responsibilities of both parties are defined

- ☐ Customer dependencies are identified
- ☐ Service exclusions are specified
- ☐ Change-control mechanism exists
- ☐ Additional services require written approval
- ☐ Acceptance criteria are defined
- ☐ Acceptance / rejection process is clear

## Review Question

Could the parties reasonably disagree about what the supplier is required to deliver?

Finding:

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# 5. SERVICE LEVELS & PERFORMANCE

Where applicable:

- ☐ SLA included
- ☐ Service availability / uptime defined
- ☐ Response times defined
- ☐ Resolution times defined
- ☐ Severity levels established
- ☐ Performance metrics measurable
- ☐ Service credits addressed
- ☐ Escalation mechanism included
- ☐ Reporting obligations specified
- ☐ Business continuity obligations reviewed

SLA Risk: ☐ Low ☐ Medium ☐ High

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# 6. TERM & RENEWAL

- ☐ Effective date identified
- ☐ Initial term specified
- ☐ Renewal mechanism clear
- ☐ Automatic renewal reviewed
- ☐ Renewal notice period specified
- ☐ Price changes upon renewal addressed
- ☐ Transition obligations considered

## Key Question

Can the company exit or renegotiate the relationship before an unwanted automatic renewal?

Finding:

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# 7. TERMINATION

- ☐ Termination for convenience reviewed
- ☐ Termination notice period specified
- ☐ Termination for material breach included
- ☐ Cure period defined
- ☐ Insolvency termination addressed
- ☐ Regulatory / legal termination rights considered
- ☐ Repeated SLA failure addressed
- ☐ Consequences of termination specified
- ☐ Outstanding payments addressed
- ☐ Data return / deletion addressed
- ☐ Transition assistance addressed
- ☐ Survival provisions reviewed

**Termination Risk:** ☐ Low ☐ Medium ☐ High

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## 8. CONFIDENTIALITY

- ☐ Definition of Confidential Information reviewed
- ☐ Permitted disclosures specified
- ☐ Appropriate exclusions included
- ☐ Employee / advisor disclosure permitted where necessary
- ☐ Confidentiality obligations survive termination
- ☐ Return / destruction obligations included
- ☐ Appropriate standard of care specified
- ☐ Injunctive relief provision reviewed, if applicable

**Finding:**

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## 9. INTELLECTUAL PROPERTY

### Background IP

- ☐ Ownership of pre-existing IP identified
- ☐ Existing licences / rights preserved

### New / Developed IP

- ☐ Ownership clearly allocated
- ☐ Assignment provisions reviewed
- ☐ Licence rights clearly defined
- ☐ Scope of licence specified
- ☐ Territory specified
- ☐ Duration specified
- ☐ Restrictions on use addressed
- ☐ Open-source software obligations reviewed
- ☐ Third-party IP warranties included
- ☐ IP infringement indemnity considered

### Key Question

**Who owns the work product, software, data, documentation or other IP created during the engagement?**

**Finding:**

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## 10. DATA PROTECTION & INFORMATION SECURITY

Where personal or sensitive business data is involved:

- ☐ Types of data identified
- ☐ Data-processing responsibilities identified
- ☐ Applicable privacy obligations reviewed
- ☐ Data security requirements specified
- ☐ Access controls addressed
- ☐ Security incident / breach notification timeline specified
- ☐ Data retention period addressed
- ☐ Data deletion / return requirements included
- ☐ Sub-processors addressed
- ☐ Cross-border data transfers considered
- ☐ Audit / security assessment rights reviewed

**Data Protection Risk:** ☐ Low ☐ Medium ☐ High

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## 11. REPRESENTATIONS & WARRANTIES

- ☐ Authority to enter into contract
  - ☐ Legal capacity confirmed
  - ☐ Compliance with applicable law
  - ☐ Services conform to agreed specifications
  - ☐ No known IP infringement
  - ☐ Professional standards addressed
  - ☐ Required licences / approvals maintained
  - ☐ Warranty period specified
  - ☐ Warranty remedy clearly defined
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## 12. INDEMNIFICATION

- ☐ Indemnifying party identified
- ☐ Indemnified parties identified
- ☐ Scope of indemnity defined
- ☐ Third-party claims covered where appropriate
- ☐ IP infringement indemnity considered
- ☐ Confidentiality breach considered
- ☐ Data breach indemnity considered where appropriate
- ☐ Regulatory / legal violation considered
- ☐ Notice and defence procedure defined
- ☐ Settlement control addressed
- ☐ Indemnity exclusions reviewed

### Indemnity Risk

**Finding:**

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## 13. LIMITATION OF LIABILITY

- ☐ Liability cap included
- ☐ Cap calculation methodology identified
- ☐ Contract value / fees used appropriately
- ☐ Direct and indirect damages provisions reviewed
- ☐ Consequential damages exclusion reviewed
- ☐ Carve-outs from liability cap identified
- ☐ Unlimited liability provisions identified
- ☐ Indemnity interaction reviewed
- ☐ Confidentiality interaction reviewed
- ☐ IP infringement interaction reviewed
- ☐ Data breach interaction reviewed

### Key Question

Does the liability allocation reasonably correspond to the commercial and legal risks of the transaction?

Finding:

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## 14. INSURANCE

Where applicable:

- ☐ Required insurance policies identified
  - ☐ Minimum coverage specified
  - ☐ Professional indemnity insurance reviewed
  - ☐ Cyber insurance reviewed
  - ☐ General liability insurance reviewed
  - ☐ Insurance certificates required
  - ☐ Coverage maintained throughout contract term
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## 15. COMPLIANCE & REGULATORY OBLIGATIONS

- ☐ Applicable laws identified
  - ☐ Anti-bribery / anti-corruption obligations
  - ☐ Sanctions requirements, where relevant
  - ☐ Anti-money laundering obligations, where relevant
  - ☐ Labour / employment compliance, where relevant
  - ☐ Tax compliance
  - ☐ Industry-specific regulatory requirements
  - ☐ Records and audit requirements
  - ☐ Compliance certification requirements
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## 16. SUBCONTRACTING & THIRD PARTIES

- ☐ Subcontracting permitted / restricted
  - ☐ Prior consent requirement reviewed
  - ☐ Supplier remains responsible for subcontractors
  - ☐ Third-party access to confidential information addressed
  - ☐ Data access by subcontractors addressed
  - ☐ Subcontractor compliance obligations included
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## 17. ASSIGNMENT

- ☐ Assignment by either party permitted / restricted
  - ☐ Change-of-control treatment reviewed
  - ☐ Consent requirement identified
  - ☐ Assignment to affiliates addressed
  - ☐ Assignment does not unintentionally increase risk
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## 18. DISPUTE RESOLUTION

- ☐ Governing law identified
- ☐ Jurisdiction identified
- ☐ Arbitration provision reviewed, if applicable
- ☐ Arbitration seat specified
- ☐ Arbitration rules specified
- ☐ Number / appointment of arbitrators addressed
- ☐ Mediation / negotiation mechanism considered
- ☐ Interim relief mechanism reviewed

**Dispute Resolution Risk:** ☐ Low ☐ Medium ☐ High

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## 19. FORCE MAJEURE

- ☐ Force majeure events defined
  - ☐ Notice obligation specified
  - ☐ Mitigation obligation included
  - ☐ Performance suspension addressed
  - ☐ Payment obligations during force majeure addressed
  - ☐ Long-term force majeure termination right considered
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## 20. GENERAL / BOILERPLATE CLAUSES

- ☐ Entire agreement
- ☐ Amendment / modification

- ☐ Waiver
  - ☐ Severability
  - ☐ Notices
  - ☐ Counterparts
  - ☐ Electronic signatures
  - ☐ Relationship of parties
  - ☐ No partnership / agency
  - ☐ Further assurances
  - ☐ Survival
  - ☐ Order of precedence
  - ☐ Conflict between MSA / SOW / PO addressed
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## 21. SIGNATURE & EXECUTION

- ☐ Correct signatory identified
  - ☐ Board / internal approval obtained where required
  - ☐ Signature blocks complete
  - ☐ Witness requirements checked, if applicable
  - ☐ Stamp / e-stamp requirements checked
  - ☐ Appropriate execution method confirmed
  - ☐ Effective date confirmed
  - ☐ All schedules / annexures attached
  - ☐ Final execution copy matches approved version
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## 22. RED-FLAG REVIEW

| Issue                | Clause    | Risk   | Priority                                                                                     | Recommended Action                | Status |
|----------------------|-----------|--------|----------------------------------------------------------------------------------------------|-----------------------------------|--------|
| Broad indemnity      | Clause 12 | High   |  Critical | Narrow scope and add exclusions   | Open   |
| No clear SLA remedy  | Clause 5  | Medium |  High     | Add service credits / remedies    | Open   |
| Automatic renewal    | Clause 6  | Medium |  Medium   | Add advance notice requirement    | Open   |
| IP ownership unclear | Clause 9  | High   |  Critical | Clarify ownership / licence       | Open   |
| Liability cap        | Clause 13 | Medium |  High     | Review cap and carve-outs         | Open   |
| Data breach notice   | Clause 10 | High   |  Critical | Add defined notification timeline | Open   |

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## 23. CONTRACT RISK SUMMARY

| Category              | Risk Rating                                                                                | Reviewer Comments |
|-----------------------|--------------------------------------------------------------------------------------------|-------------------|
| Commercial            | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Scope / Deliverables  | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Confidentiality       | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Intellectual Property | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Data Protection       | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Indemnification       | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Liability             | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Termination           | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Regulatory Compliance | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |
| Dispute Resolution    | <input type="checkbox"/> Low <input type="checkbox"/> Medium <input type="checkbox"/> High | _____             |

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## 24. LEGAL REVIEW OUTCOME

### Overall Review Status:

- ☐ Approved – No material issues identified
- ☐ Approved Subject to Minor Changes
- ☐ Revision Required
- ☐ Escalation Required
- ☐ Business Approval Required
- ☐ Not Recommended for Execution Until Issues Are Resolved

## Key Negotiation Points

1. \_\_\_\_\_
2. \_\_\_\_\_
3. \_\_\_\_\_
4. \_\_\_\_\_
5. \_\_\_\_\_

## Required Approvals

- ☐ Business Owner
  - ☐ Finance
  - ☐ Legal
  - ☐ Information Security
  - ☐ Data Protection / Privacy
  - ☐ Senior Management
  - ☐ Board / Authorised Committee
  - ☐ Other: \_\_\_\_\_
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# 25. FINAL PRE-SIGNATURE CHECK

- ☐ All legal comments resolved
  - ☐ Commercial terms confirmed
  - ☐ Negotiated changes incorporated
  - ☐ Redlines reconciled
  - ☐ Final version approved
  - ☐ Annexures verified
  - ☐ Internal approvals obtained
  - ☐ Signatory authority verified
  - ☐ Execution requirements confirmed
  - ☐ Final signed copy to be stored
  - ☐ Contract metadata entered into Contract Repository
  - ☐ Renewal / termination dates entered into Contract Management Tracker
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## REVIEW SIGN-OFF

Reviewed By: \_\_\_\_\_

Designation: Legal / Compliance

Review Date: \_\_\_\_\_

Contract Version Reviewed: \_\_\_\_\_

Business Owner Approval: \_\_\_\_\_

Final Status: \_\_\_\_\_

Signature: \_\_\_\_\_

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